

HOUSE BILL 294

By Clemmons

AN ACT to amend Tennessee Code Annotated, Section 55-8-198, relative to surveillance cameras.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Section 55-8-198(f)(1), is amended by deleting the subdivision and substituting instead:

(1) Surveillance cameras are not permitted on federal interstate highways, except for:

- (A) SmartWay cameras;
- (B) Other intelligent transportation system cameras; and
- (C) Surveillance cameras operated only by a state entity and used to:
 - (i) Enforce or monitor traffic violations within work zones designated by the department of transportation when employees of the department or construction workers are present; or
 - (ii) Aid in the investigation and prevention of terrorism and state criminal offenses other than traffic violations.

SECTION 2. Tennessee Code Annotated, Section 55-8-198, is amended by adding the following as a new subsection:

(o)

(1) As used in this subsection (o), "traffic violation" means a violation of this chapter or chapter 9 of this title or parts 1-4 of chapter 10, or a violation of a municipal ordinance regulating traffic, including those that regulate parking.

(2) Notwithstanding another law, a county or municipality may purchase, install, operate, and maintain surveillance cameras on any public road or

highway, other than a federal interstate highway, for the purpose of aiding in the investigation and prevention of terrorism and state criminal offenses; provided, that:

(A) Such use is consistent with the continued use, operations, maintenance, and safety of the highway facility and does not interfere with the free and safe flow of traffic;

(B) The cameras are only operated by local law enforcement agencies;

(C) The cameras must not be used to enforce or monitor state or local traffic violations or issue citations for such violations; and

(D) If the cameras are used on state roads, the local law enforcement agency has obtained approval from the department of transportation in the manner provided in subdivision (f)(3) prior to the installation and operation of the cameras, and the cameras and their use are subject to subdivisions (f)(4)-(6).

SECTION 3. This act takes effect upon becoming a law, the public welfare requiring it.